

this case both injunctive relief and civil penalties. When the complaint was filed, however, almost all of the property at issue had been sold by petitioner to third parties. Injunctive relief was therefore impractical except with regard to a small portion of the land.² App. 110, 119. The Government's complaint demanded the imposition of the maximum civil penalty of \$22,890,000 under subsection (d). App. 31-34.

Petitioner's timely demand for a trial by jury was denied by the District Court. During the 15-day bench trial, petitioner did not dispute that he had placed fill at the locations alleged and did not deny his failure to obtain a permit. Petitioner contended, however, that the property in question did not constitute "wetlands." 615 F. Supp. 610, 615-618 (ED Va. 1983). The Government concedes that triable issues of fact were presented by disputes between experts involving the composition and nature of the fillings. Tr. of Oral Arg. 44.

The District Court concluded that petitioner had illegally filled in wetland areas on all properties in question, but drastically reduced the amount of civil penalties sought by the Government. With respect to the Ocean Breeze Mobile Homes Sites, the court imposed a civil fine of \$35,000, noting that petitioner had sold seven lots at a profit of \$5,000 per lot. 615 F. Supp., at 626. The court fined petitioner another \$35,000 for illegal fillings on the Mire Pond Properties, *ibid.*, and \$5,000 for filling that affected a single lot in Eel Creek, *ibid.*, although petitioner had realized no profit from filling in these properties. In addition, the court imposed on petitioner a \$250,000 fine to be suspended, however, "on the specific condition that he restore the extension of Fowling Gut to its former navigable condition" *Id.*, at 627. Although petitioner argued that such restoration required purchasing

²The Government's complaint alleged violations involving over 1 million square feet of land. The Government obtained injunctive relief, however, relating to only 6,000 square feet. Brief for Petitioner 5.